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California lawmakers try again to make it easier to build housing

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SACRAMENTO — The legislative package to address California's housing shortage next year will look a lot like it did this year, before it fell victim to internal politics, battles with interest groups and the coronavirus pandemic.

State Senate President Pro Tem Toni Atkins, D-San Diego, said she expects lawmakers to bring back at least half a dozen unsuccessful measures, including her own proposal to make it easier to split lots and convert homes into duplexes.

"You're going to see a number of the bills that we put forward last year that actually got really far down the road and we anticipate them being well-received, because we did the work," Atkins said during a Zoom call with reporters after the Senate was sworn in Monday for a new two-year session.

Grand ambitions at the start of this year to send a package of bills to Gov. Gavin Newsom to streamline project approvals and jump-start construction were cut short when the pandemic dried up funding and forced lawmakers to prune their agenda. Other measures were casualties of a conflict between affordable-housing developers and the powerful organization representing building trade unions, which pushed to include hiring guarantees for skilled workers.

And even bills that made it to the end of session wound up caught in legislative infighting. Atkins' subdivision measure, which would have paved the way to build out neighborhoods that are now limited to single-family housing, died because it passed the Assembly just three minutes before the legislative deadline, leaving no time for final approval in the Senate.

That concept, in a new bill called SB9, is once again part of a legislative package on housing that Atkins said she plans to unveil this week. While lawmakers can introduce bills, the regular business of the Capitol does not resume until January.

"We're starting at a good place," Atkins said. "There may be a few new ideas I've heard of."

Several other old ones also resurfaced Monday.

Sen. Scott Wiener, D-San Francisco, reintroduced his "gentle density" measure that would allow cities to rezone residential parcels for apartment or condominium projects of up to 10 units without having to go through environmental reviews that can add years to the process. Under his bill, SB10, cities could adopt the change for neighborhoods near public transit and in high-income areas with access to jobs and good schools, but would not be required to.

"It's a powerful new tool for cities," he said. "We make it really painful, expensive and lengthy for cities to do the right thing."

Wiener said he wanted to take another run at the bill because it got positive feedback as it moved through the Senate and Assembly committees last year, before succumbing to a conflict between the two chambers over the best approach to housing policy.

If Wiener is able to strike a deal with the building trades on skilled workforce requirements, he also hopes to bring back a measure to promote the conversion of parking lots owned by religious institutions into affordable housing.

"There was a lot of inter-house tension at the end of the session, and it manifested in a lot of ways, including on housing," Wiener said. "I'm much more optimistic that we'll be able to do strong legislation on housing this year."

Sen. Anna Caballero, D-Salinas, introduced SB6, which would open properties zoned for office and commercial buildings to housing development, particularly in areas where the land has sat empty for years. A version passed the Senate this year but did not advance in the Assembly.

Another Atkins bill, SB7, revives a proposal to renew and expand a shortened environmental review process for projects that would not increase greenhouse gas emissions. The program, created a decade ago to speed the approval of major developments, expires at the end of 2020. Atkins would also extend access to smaller mixed-use and affordable housing projects.

Although it does not yet include details, SB8 by Sen. Nancy Skinner, D-Berkeley, would give housing developers additional incentive for including more affordable units, such as being allowed to increase the size of a project.

Earlier versions of those two measures passed both houses of the Legislature last session but never received final approval in the Senate because time ran out.

A final bill, SB5 by Atkins, Wiener, Skinner and other senators, would be a vehicle for issuing bonds to pay for housing projects for homeless and low-income Californians. It does not have a price tag yet.

In the Assembly, a group of Democrats tried this year to cap the fees that local governments can charge to developers to offset the effects their housing projects have on roads, police and other public services. But those bills, an effort to boost construction by cutting costs, died over concerns about taking additional revenue from cities and counties amid the recession caused by the pandemic.

On Monday, Assembly Member Jesse Gabriel, D-Encino (Los Angeles Country), introduced AB59, which would extend the public notification period for creating new fees and expand the types of fees that a developer can challenge on a project.

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